EXCERPTS FROM THE MINUTES OF THE 206TH MEETING OF THE MSU BOARD OF REGENTS MEETING HELD AT CHED CONFERENCE ROOM, HEDC BUILDING, C.P. GARCIA AVENUE, U.P., DILIMAN, QUEZON CITY, ON APRIL 30, 2009

Xxxx

Resolution No. 73, S. 2009 BOARD OF REGENTS
Annex "MM"

A-148

Republic of the Philippines
ILIGAN INSTITUTE OF TECHNOLOGY
of the Mindanao State University

OFFICE OF THE CHANCELLOR

Iligan Address:
A. Bonifacio Avenue, 9200 Iligan City
Tels. (063) 221-4056 (IIT)
(063) 492-1173 (Globe)
(063) 221-4050-55 (TL)
Fax: (063) 3516173

Manila Address:
MSU-IIT MANILA INFORMATION & LIAISON OFFICE
Bldg. 4 GSIS Metro Homes
GA-9, Pureza cor. Anonas St., Sta. Mesa, Manila
Tel. (02) 716 3975

2 March 2009

SPECIAL ORDER)
No. 00112 - IIT)
Series of 2009

SUBJECT: **Suspension of Ms. Marissa C. Bola, Midwife I, Medical and Dental Health Services, this Institute**

On 2 December 2008, Ms. Marissa C. Bola was formally charged for the Administrative offenses of Habitual, Frequent and Unauthorized absences for a period of 110 days, committed from January to September 2008; Inefficiency; Incompetence and Conduct Prejudicial to the best interest of the Service. During the formal hearing of the case, respondent was informed of her right to be represented by counsel of her own choice considering the gravity of the charge against her. However she chose not to engage the services of counsel by manifesting her willingness to proceed with the probe sans representation.

WHEREFORE, the recommendation of the Institute Disciplinary Committee created to investigate the case is hereby adopted *in toto*. Hence Ms. Marissa C. Bola is hereby suspended for eight (8) months or a total of two hundred and forty (240) days without pay subject to the following conditions:

(1) she will serve her suspension from 15 March 2009 to 10 November 2009;

(2) she is warned with a stern warning that a repetition of similar conduct or any violation of civil service rules and regulations in the future will merit a more severe penalty.

This Order takes effect upon immediately and shall remain in force unless revoked by competent authority.

MARCELO H. SALAZAR
Chancellor

Copy furnished:
1. Ms. Marissa C. Bola- respondent
2. Dr. Ruby G. Abragan- Chief Administrative Officer
3. Dr. Polaus M. Bari- Vice Chancellor for Administration and Finance

UNOFFICIAL

Annex "HH-1"

Republic of the Philippines
Mindanao Stat University
ILIGAN INSTITUTE OF TECHNOLOGY
Tibanga, Iligan City

MSU-ILIGAN INSTITUTE OF TECHNOLOGY,
Complainant,

-versus-

MS. MARISSA C. BOLA
Respondent.

ADM. CASE NO. 2008-

For: Habitual, Frequent & Unauthorized Absences; Inefficiency; Incompetence; and, Conduct Prejudicial to the Best Interest of the Service

x----------/

RESOLUTION

On 5 November 2008, the Office of the Vice Chancellor for Administration and Finance endorsed to the Chancellor a report dated 23 September 2008, from Dr. Rudy G. Abragan, Chief Administrative Officer of the Medical and Dental Health Services, informing that:

"I, Ms. Marissa C. Bola has been absent starting January to September 05, 2008 without an approved leave; herewith below were the inclusive dates indicated as follows:

For the Month of JANUARY 2008:

Dates:		
	2- Wednesday	17- Thursday
	3- Thursday	18- Friday
	4- Friday	21- Monday
	7- Monday	22- Tuesday
	8- Tuesday	23- Wednesday
	10- Thursday	24- Thursday
	11- Friday	25- Friday
	14- Monday	28- Monday
	15- Tuesday	30- Wednesday
	16- Wednesday	

UNOFFICIAL

CERTIFIED TRUE COPY
SANDRA M. ESCAÑAS

Republic of the Philippines
ILIGAN INSTITUTE OF TECHNOLOGY
of the Mindanao State University

LEGAL SERVICES OFFICE

A. Bonifacio Avenue, 9200 Iligan City
Tel. Nos. (063) 351-6174 (DL)
(063) 221-1050 -55 (LL) Local 375

"For the Month of FEBRUARY 2008

"Dates:4- Monday
5- Tuesday
6- Wednesday
7- Thursday
8- Friday
11 - Monday
12- Tuesday
19- Tuesday, p.m.
21- Thursday
22- Friday, p.m.
29- Friday

"For the Month of MARCH '2008

"Dates:7- Friday
10- Monday
24-Monday
25- Tuesday
26- Wednesday
27- Thursday
28- Friday
31- Monday

"For the Month of APRIL '2008

"Dates:

1 - Tuesday
2 - Wednesday
3 - Thursday
4 - Friday
8 - Tuesday
9 - Wednesday
10 -Thursday
11 - Friday
14 - Monday
15- Tuesday
16 - Wednesday
17- Thursday
18 - Friday
21- Monday
22 - Tuesday
23 - Wednesday
24 - Thursday
25 - Friday
28 - Monday
29 - Tuesday
30 - Wednesday

"For the Month of MAY 2008

"Dates:2- Friday
5- Monday
13- Tuesday
16- Friday
26- Monday
27- Tuesday'

"For the Month of JUNE '2008

"Dates:
2 – Monday, a.m.
3 - Tuesday
4 - Wednesday
5 - Thursday
6 – Friday
10 - Tuesday
11- Wednesday
20 - Friday, p.m.
24 - Tuesday
25 - Wednesday
26 - Thursday
27 - Friday
30- Monday

"For the Month of JULY '2008

"Dates:8- Tuesday
9- Wednesday
25- Friday
28- Monday

UNOFFICIAL

CERTIFIED TRUE COPY

Republic of the Philippines
ILIGAN INSTITUTE OF TECHNOLOGY
of the Mindanao State University

LEGAL SERVICES OFFICE
A. Bonifacio Avenue, 9200 Iligan City
Tel. Nos. (063) 351-6174 (DL)
(063) 221-4050-55 (LL) Local-175

18- Friday
21- Monday, p.m.
23- Wednesday
24- Thursday
29- Tuesday
31- Thursday

"For the Month of AUGUST '2008

"Dates: 1- Friday
6- Wednesday 14- Thursday 26- Tuesday
8- Friday 15- Friday 27- Wednesday
11- Monday 19- Tuesday 28- Thursday
12- Tuesday 20- Wednesday [illegible]
13- Wednesday 21- Thursday 22- Friday

"For the Month of SEPTEMBER '2008

"Dates: 2- Tuesday 9- Tuesday 16- Tuesday
3- Wednesday 10- Wednesday 17- Wednesday
4- Thursday 11- Thursday 18- Thursday
5- Friday 12- Friday 19- Friday
8- Monday 15- Monday

"2. Respondent was absent for a total of one hundred ten (110) days which were unauthorized by her immediate supervisor starting January to September of 2008. Of the 177 working days from January to September 2008, she incurred One hundred ten (110) days absences without leave. As such, she only reported to work for 67 days in the last 9 months."

On 6 November 2008, the Office of the Chancellor directed respondent to submit her explanation, which she did on 11 November 2008, in this wise:

"1. I admit that I did once become an irresponsible employee during the critical times of my life, but it is also the knowledge of everybody that I was serving the institute constituents for many years with all my heart."

"2. My absence started when my husband Mr. Deleon died.

"3. Since September 23, 2008 I already reported for work."

A careful scrutiny of the documents adduced by Dr. Abragan, considered in the light of the unqualified admission of respondent, will indubitably establish a *prima facie* case against the latter.

The records show that respondent has been consistently absent from work from January to September 2008, for 110 days, without an approved

UNOFFICIAL

CERTIFIED TRUE COPY
ESTER VASCENAS

Republic of the Philippines
ILIGAN INSTITUTE OF TECHNOLOGY
of the Mindanao State University

LEGAL SERVICES OFFICE

A. Bonifacio Avenue, 9200 Iligan City
Tel. Nos. (063) 351-6174 (PL)
(063) 221-4050 -55 (IIT) Local 175

leave. This fact is reinforced by the apparent failure of respondent to fill up her daily time record. Thus, she could be dropped from the rolls for being absent without an approved leave for more than thirty (30) days.

On 26 November 2008, the Chancellor issued a formal charge pursuant to Civil Service Commission (CSC) Resolution No. 991936, directing respondent to answer the indictment against her within 72 hours from receipt thereof.

On 2 December 2009, respondent tendered her answer/reply where she admitted the material allegations against her but at the same time requested a full blown investigation. Consequently, the Chancellor issued Special Order No. 00899, Series of 2008, creating a Disciplinary Committee, composed of the undersigned, to conduct a formal probe on the charge for habitual and frequent unauthorized absences, inefficiency, incompetence, and conduct prejudicial to the best interest of the service against the respondent.

On 11 December 2008, a formal hearing was conducted by the Committee in the presence of the respondent's immediate supervisor, Dr. Ruby G. Abragan. The Committee informed respondent of her right to be represented by counsel of her choice considering the gravity of the accusations. Respondent however indicated her willingness to proceed with the probe sans representation.

During the formal investigation, respondent admitted that her unauthorized absences were caused by her personal problems arising from the death of her husband in 2003. However, the Committee notes that respondent started her non-attendance from work only in January 2008, after the lapse of five (5) years from the demise of her husband. In other words, the death of her husband in 2003 was not the proximate cause for her frequent absences beginning January 2008.

Furthermore, records also show that respondent's absences were neither authorized nor approved by her immediate superior. It is worthy to note that under CSC Memorandum Circular No. 4, Series of 1991, an officer or employee in the Civil Service shall be considered habitually absent if he/she incurs unauthorized absences exceeding the allowable 2.5 days monthly leave credits under the leave law for at least three (3) months in a semester or at least three (3) consecutive months during the year. Such a violation renders the erring employee administratively liable for grave offense of Frequent Unauthorized Absences in Reporting for Duty and for Gross Neglect of Duty under Section 22 (q) and (a), respectively of the Omnibus Rules Implementing Book V of Executive Order No. 292.

UNOFFICIAL

CERTIFIED TRUE COPY
ATTY. ROSALYN C. ALVAREZ

Republic of the Philippines
ILIGAN INSTITUTE OF TECHNOLOGY
of the Mindanao State University

LEGAL SERVICES OFFICE

A. Bonifacio Avenue, 9200 Iligan City
Tel. Nos. (063) 351-6174 (DL)
(063) 221-4050-55 (LL) Local 175

While we would like to empathize with respondent however we cannot close our eyes to the undeniable fact that her unauthorized absences caused prejudice to public service.

The seriousness of the charge, coupled with respondent's unqualified admission thereto, prompted the Committee to suggest that she avail of an early retirement from the service. But respondent refused.

As a result of Ms. Bola's frequent absences, she failed to perform her duties and responsibilities in the government service. Every time respondent absents herself without permission, she also necessarily neglects performing her duties at the Clinic. This has been going on time and again for nine (9) long months, consisting of 110 days to be exact. By her own admission, respondent has been remiss, as a public servant, in the performance of her duties. Indeed, even with the fullest measure of sympathy and patience, we cannot act otherwise since the exigencies of government service cannot and should never be subordinated to purely human equations.

WHEREFORE, the Committee finds respondent guilty of habitual and frequent unauthorized absences for a period of 110 days, committed from January to September 2008, inefficiency; incompetence; and, conduct prejudicial to the best interest of the service. Considering however that respondent unconditionally admitted her guilt (which is appreciated as a mitigating circumstance) and considering further that she served the Institute for twenty-five (25) years, the Committee hereby recommends a penalty of suspension without pay for a period of eight (8) months, with a stern warning that a repetition of similar conduct or any violation of civil service rules and regulations in the future will merit a more severe penalty.

Iligan City, 18 February 2009.

Atty. Roberto C. Padilla
Chairman

Ms. Monawira A. Ali
Member

Ms. Marilyn J. Nurio
Member

Dr. Rhodora S. N. Englis
Member

Prof. Geoffrey G. Salgado
Member

UNOFFICIAL

CERTIFIED TRUE COPY